RESOLUTION NO. _____

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF HOLLYWOOD, FLORIDA, APPROVING AND AUTHORIZING THE APPROPRIATE CITY OFFICIALS TO EXECUTE ALL REQUIRED DOCUMENTS FOR THE SALE, TRANSFER, OR OTHER DISPOSITION OF APPROXIMATELY 1.41 ACRES OF CITY-OWNED REAL PROPERTY WITH PARCEL ID NO. 504236000070, LOCATED OFF NORTH SURF ROAD ADJACENT TO DR. VON MIZELL – EULA JOHNSON STATE PARK, TO BROWARD COUNTY FOR PRESERVATION SUBJECT TO APPROVAL BY THE ELECTORATE AT A REFERENDUM TO BE HELD NOVEMBER 3, 2026; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Hollywood ("City") is the owner of approximately 1.41 acres of vacant beachfront land (the "Property") identified as Parcel ID No. 504236000070 generally located on N. Surf Road adjacent to Dr. Von Mizell-Eula Johnson State Park; and

WHEREAS, Broward County ("County") originally purchased the Property as part of the 2000 Safe Parks and Land Preservation Bond and deeded the Property to the City subject to a conservation easement and maintenance agreement; and

WHEREAS, the County is now requesting the transfer of the Property back to County ownership; and

WHEREAS, the County intends to use the land to meet environmental mitigation requirements with the land being preserved through a conservation easement or restrictive covenant for open space/recreation as part of the Dr. Von Mizell-Eula Johnson State Park; and

WHEREAS, City Charter Section 13.01, Sale of City-Owned Real Property, states in Section (c) that any real property which is beach or beachfront which the City proposes to sell or to otherwise dispose of must be approved by a majority vote of the City's electors voting on such proposal; and

WHEREAS, City Charter Section 13.01, Sale of City-owned real property, states in Section (c) that any property which the City proposes to sell or otherwise dispose of must be appraised by one independent, qualified appraiser. However, property that is listed by the Broward County Property Appraiser as having a value of not more than $25,000.00 may be sold or disposed of without an appraisal; and

WHEREAS, the Property was appraised and has an estimated value of $10,000.00 due to the conservation easement, limited access, and location eastward of the Coastal Construction Control Line.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF HOLLYWOOD, FLORIDA:

Section 1: That the foregoing "WHEREAS" clauses are ratified and confirmed as being true and correct and are incorporated in this Resolution.

Section 2: That it approves and authorizes the appropriate City officials to cause to be placed on the ballot, a referendum approving the sale, transfer or other disposition of the property to Broward County with the ballot language contained in the attached Exhibit A.

Section 3: That, upon approval by the electorate of the proposed sale or transfer authorizes the City Manager or designee to take all actions necessary to effectuate the sale or transfer.

Section 4: That pursuant to the requirements of Florida Statute Section 100.342, notice of the referendum shall be given at least 30 days in advance of the referendum and shall be given in a newspaper of general circulation published in Broward County. The notice shall be published at least twice, once in the fifth week and once in the third week prior to the week in which the referendum is to be held.

Section 5: That if the referendum is approved by a majority of the electors voting, such approval shall take effect as of the day immediately following the certification of the results of the referendum.

Section 6: That this Resolution shall be in full force and effect immediately upon its passage and adoption.

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF HOLLYWOOD, FLORIDA, APPROVING AND AUTHORIZING THE APPROPRIATE CITY OFFICIALS TO EXECUTE ALL REQUIRED DOCUMENTS FOR THE SALE, TRANSFER, OR OTHER DISPOSITION OF APPROXIMATELY 1.41 ACRES OF CITY-OWNED REAL PROPERTY WITH PARCEL ID NO. 504236000070, LOCATED OFF NORTH SURF ROAD ADJACENT TO DR. VON MIZELL – EULA JOHNSON STATE PARK, TO BROWARD COUNTY FOR PRESERVATION SUBJECT TO APPROVAL BY THE ELECTORATE AT A REFERENDUM TO BE HELD NOVEMBER 10, 2026; AND PROVIDING FOR AN EFFECTIVE DATE.

PASSED AND ADOPTED this _____ day of _____, 2026.

_____
JOSH LEVY, MAYOR

ATTEST:

_____
PATRICIA A. CERNY, MMC
CITY CLERK

APPROVED AS TO FORM
AND LEGAL SUFFICIENCY:

_____
DAMARIS HENLON
CITY ATTORNEY